

25AVCV00750 25AVCV00750

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV00750 Hearing Date: August 13, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ALBERT RODRIGUEZ, an individual,

Plaintiff,

v.

SHAY YACOBI, an individual; and OMEGA DESIGN, INC.,

Defendants.

SHAY YACOBI, an individual; and OMEGA DESIGN, INC.,

Cross-Complainants,

v.

ALBERT RODRIGUEZ, an individual,

Cross-Defendant.

Case Number 25AVCV00750

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 13, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a breach of contract case. Counsel for Defendants Robert F. Smith (Counsel) moves to be relieved as counsel.

On June 11, 2025, Plaintiff Albert Rodriguez (Plaintiff) filed a complaint against Defendants Shay Yacobi (Yacobi) and Omega Design, Inc. (Omega) (together Defendants), asserting a cause of action for breach of contract. Plaintiff alleges that on December 23, 2020, Plaintiff entered into a written contract with Omega, executed by its principal Yacobi, for the construction of a residential perimeter wall on Plaintiff's property. (Compl., Attachment 2, ¶ 1.) Plaintiff asserts he paid, and Omega accepted, \$41,200.00 under the contract, but that no materials were delivered, no labor was performed, and no visible activity ever began on the project site. (Id at ¶¶ 2-3.)

On July 28, 2025, Defendants filed a general denial to the complaint and a cross-complaint against Plaintiff for breach of contract.

On August 1, 2025, Plaintiff filed his answer to the cross-complaint.

On February 23, 2026, the Court held a Case Management Conference, at which the parties stated they were amenable to mediation. The Court referred the parties to the Mediation Volunteer Panel, a court-connected program administered by the Los Angeles Superior Court's Alternative Dispute Resolution Office. The mediation was ordered to be completed by October 16, 2026.

On June 29, 2026, Counsel filed the present motions to be relieved as counsel for Omega and Yacobi.

This motion is unopposed.

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising

the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362(a) – (e).)

"If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) the service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (Cal. Rules of Court, rule 3.1362(d)(1).) "[C]urrent' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned...is not, by itself, sufficient to demonstrate that the address is current." (Id at rule 3.1362(d).)

III. Discussion

Application – The Court finds that Counsel has complied with the requirements of Rule 3.1362. Counsel has filed MC-051 forms directed at Omega and Yacobi. Counsel has also filed MC-052 Declarations as to each Defendant, stating that Counsel's health has declined, making it almost impossible for him to represent Defendants in this case, and that Counsel has not heard back from Defendants since mid-April. As to Yacobi, Counsel states Yacobi did not respond to Counsel's last effort at communication. Counsel has provided the next hearing date in this matter on the moving forms and has declared that both Defendants were served by mail at their verified last known addresses. Counsel confirmed Omega's last known address within the last 30 days by electronic mail, and has confirmed Yacobi's by conversation.

The Court also finds minimal prejudice to Defendants. Omega is a corporation, and it is well established law in California that a company may not represent itself in legal proceedings and must be represented by counsel. (See *Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729 ["A corporation cannot represent itself in court, either in propria persona or through an officer or agent who is not an attorney".]) However, the Court is not estopped from granting counsel's motion for relief solely because it will leave Plaintiff without representation. (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284 fn. 5 [the ban on corporate self-representation does not prevent a court from granting a motion to withdraw as attorney of record, even if it leaves the corporation without representation].)

Furthermore, while the parties are actively engaged in mediation efforts, Omega need not have legal representation, as the mediation attendance requirements permit corporations and other entities to send "a representative familiar with the facts of the case, and that person shall have the authority to negotiate and to effectively recommend settlement to the governmental or corporate entity involved." (1 Cal. Code Reg., 1222.) Thus, Defendants may have an attorney present for mediation, but this is not a requirement for either. (Ibid.) The Court also notes that trial has not yet been set in this case, it does not appear that Counsel is currently engaged in mediation on behalf of Defendants, as he has not been in contact with either since mid-April of this year, and the only upcoming hearings are (1) an OSC re Mediation and (2) a trial-setting conference, both set for October 19, 2026.

Accordingly, Counsel's motions to be relieved are GRANTED. All upcoming hearing dates shall remain on calendar.

IV. Conclusion

Robert F. Smith's Motions to Be Relieved as Counsel are GRANTED.